

CAN.dy Dance Project

Release of Liability, Assumption of Risk, Waiver, and Media Release

Document Version: v1

In consideration of being permitted to participate in this **participatory dance event** and related rehearsals, performances, video productions, auditions, and activities (collectively, the "**Activities**") organized by **CAN.dy Dance Project** ("CAN.dy" or the "Team"), an unincorporated association based in San Jose, Santa Clara County, California, I agree to the following on behalf of myself and my heirs, next of kin, personal representatives, and assigns:

1. Eligibility (Adults Only)

I represent and warrant that I am **18 years of age or older**. I understand that CAN.dy participation is limited to adults and that I am entering into this Agreement voluntarily and on my own behalf.

2. Description and Nature of Activities

I understand that this is a **participatory event** in which I will actively dance, and that CAN.dy showcases **sensual movement, including heels dance and chair dance**, through rehearsals, live performances, and video productions. The Activities may involve strenuous physical exertion, dancing in heeled footwear, floor and chair work, lifts or supported movement, and **consent-based partnering and physical contact** choreography.

3. Assumption of Risk

I acknowledge and understand that the Activities involve inherent and other risks, which may include but are not limited to:

- Slips, trips, falls, and collisions;
- Sprains, strains, muscle or ligament injuries, fractures, and other musculoskeletal injuries;
- Injuries related to dancing in heels, chair work, or floor work;
- Injuries arising from physical contact or partnering with other participants;
- Aggravation of pre-existing conditions;
- Injuries caused by the condition of studio or venue premises, equipment, or the acts or omissions of other participants; and
- Risks of illness, including communicable disease, associated with close-contact activity.

I understand that these risks **cannot be eliminated** regardless of the care taken to avoid injury. I voluntarily and knowingly **assume all such risks**, both known and unknown, and accept full responsibility for any resulting injury, illness, disability, death, or property loss.

4. Physical Condition

I represent that I am physically fit and have no medical condition that would prevent safe participation. I understand that CAN.dy does not provide medical services and recommends consulting a physician before participating. I am solely responsible for determining my own capacity to participate.

5. Release and Waiver of Liability

To the fullest extent permitted by California law, I hereby **release, waive, discharge, and covenant not to sue** CAN.dy and its Co-Directors, officers (Treasurer and Secretary), Project Choreographers/Artistic Directors, appointed role-holders, members, volunteers, and agents, **and further including the owners, operators, landlords, lessors, and staff of any studio, venue, or facility where the Activities take place (each a "Venue")**, each of whom is an intended third-party beneficiary of this release (collectively, the "**Released Parties**"), from any and all claims, demands, liabilities, damages, costs, or

causes of action of any kind arising out of or related to my participation in the Activities, **including claims based on the ordinary negligence of any Released Party**, whether resulting in personal injury, illness, death, or property damage.

6. Limits of Release (California Law)

This release **does not** apply to liability arising from **gross negligence, recklessness, willful or wanton misconduct, fraud, or any conduct that cannot lawfully be released** under California law. Nothing in this Agreement waives any right that cannot legally be waived.

7. Indemnification

I agree to **indemnify, defend, and hold harmless** the Released Parties from any claims, losses, liabilities, or expenses (including reasonable attorneys' fees) brought by me or on my behalf, or arising from my own negligent or wrongful acts during the Activities, to the fullest extent permitted by law.

8. Consent-Based Partnering Acknowledgment

Consistent with CAN.dy's conduct policies, I understand that all partnering and contact choreography is **consent-based**, that I may **decline any contact at any time without retaliation**, and that I am responsible for communicating my boundaries. This Agreement does not release any Released Party from liability for harassment or intentional misconduct.

9. Media Release (Photo/Video)

I understand that CAN.dy Activities may involve photo and video recording during rehearsals, performances, and shoots. I grant CAN.dy permission to use my **name, image, likeness, voice, and performance** captured in connection with CAN.dy Activities for Team promotion, documentation, and distribution (including social media), **without additional compensation**. I understand that consenting to recording and this media release is a **condition of participation**, and that individuals who do not consent may not participate.

10. Governing Law and Venue

This Agreement is governed by the laws of the **State of California**. Any dispute will be brought exclusively in the state or federal courts located in **Santa Clara County, California**.

11. Severability

If any provision of this Agreement is held invalid or unenforceable, the remaining provisions will continue in full force, and the invalid provision will be enforced to the maximum extent permitted by law.

12. Voluntary and Knowing Agreement

I have read this Agreement, fully understand its terms, understand that I am **giving up substantial rights, including the right to sue**, and sign/agree freely and voluntarily without inducement.

Acknowledgment

By acknowledging this document you confirm all three of the following:

- I am **18 years of age or older**.
- I have read and agree to this **Release of Liability, Assumption of Risk, and Waiver**.
- I consent to **photo/video recording** and agree to the **Media Release** above. Article 16.3 of the bylaws makes participation conditional on this consent.

Under Article 20.1, ticking the acknowledgment box has the **same legal effect as a handwritten signature**. The record identifies you, the version of this document you agreed to, and the date and time, and cannot afterwards be altered or deleted (Article 20.3).